

1 GOLDSMITH & HULL, A.P.C./Our File # 23000508
2 Stephen R. Goldsmith, SBN 291555
3 William I. Goldsmith Bar #82183
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8 **DFPI License Number 11011-99**

9 **Attorneys for Plaintiff**

10 SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
11 NORTH VALLEY DISTRICT
12

13 STUDENT LOAN SOLUTIONS, LLC

14 Plaintiffs,

15 vs.

16 CAROL M OWENS aka CAROL MARIE
17 OWENS
18

19 Defendants.

Case No. 24CHLC01080

DECLARATION OF STEPHEN R.
GOLDSMITH PURSUANT TO
C.C.P. SECTION 1033; WAIVER OF PRE
JUDGMENT INTEREST; WAIVER OF
ATTORNEY FEE; DECLARATION RE:
COPY IN LIEU OF ORIGINAL PURSUANT
TO CALIFORNIA EVIDENCE CODE 1550
& 1551

20 I, Stephen R. Goldsmith do declare:
21

22 I am one of the attorneys for the plaintiff in this action. If called as witness in this action I can
23 testify competently of my own personal knowledge to the following facts:

24 **C.C.P. SECTION 1033**

25 (1) Plaintiff, prior to the filing of this action informed the defendants in writing that legal action was
26 going to be commenced against the defendants and that the legal action could result in a judgment
27

Electronically FILED by
Superior Court of California,
County of Los Angeles
5/20/2025 4:39 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By C. Castellanos, Deputy Clerk

1 against the defendants which judgment would include an award of actual costs for filing fees and
2 service of process.

3 (2) A true copy of said written notice is attached hereto.

4 (3) Said notice was mailed to the defendants at the address shown on said exhibit.

5 **WAIVER OF PRE JUDGMENT INTEREST**

6
7 2. That on behalf of said Plaintiff, I hereby waive our request for pre-judgment interest as
8 requested in the complaint on file herein.

9 **WAIVER OF ATTORNEY FEE**

10 3. That on behalf of said Plaintiff, I hereby waive our request for attorney fees as requested
11 in the complaint on file herein.

12 4. That I do this in order to facilitate the entry of judgment as against this defendant.

13 **DECLARATION RE: COPY IN LIEU OF ORIGINAL**

14
15 That I am the attorney for plaintiff herein. That if called as a witness in this action, I could
16 competently testify thereto. That I have responsibility over the client files for my caseload so the
17 plaintiff's documents herein are kept under my personal direct supervision and control; that the
18 original document known as Account & Consumer Information with Dates & Calculations;
19 Amortization of Installments; Exhibit "A" Promissory Note; General Promissory Note Example;
20 Exhibit "B" Note Disclosure Statement; Payment History & Deferments or Forbearance Applied (if
21 applicable); Annex I - Bank of America Loan Tape (Redacted); Bill of Sale & Blanket Endorsement
22 of Student Loan Promissory Notes from Bank of America; Exhibit "C" has not been received in our
23 office by our client .

24
25 Therefore, this declarant respectfully requests leave to file a copy of said true and correct
26 document which this declarant asserts is a true and correct copy of the original document herein.
27

1 I certify or (declare) under penalty of perjury under the laws of the State of California that the
2 foregoing is true and correct.

3 Executed this May 19, 2025 at Northridge, California.

4 GOLDSMITH & HULL, A.P.C.

5 
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7 _____
8 Stephen R. Goldsmith
9 Attorneys for Plaintiffs
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EXHIBIT "A"

LAW OFFICES
GOLDSMITH & HULL
A PROFESSIONAL CORPORATION
16933 PARTHENIA ST. STE. 110
NORTHRIDGE, CALIFORNIA 91343
(818)990-6600 (818)990-6140 FAX

January 8, 2024

CAROL M OWENS
[REDACTED]
[REDACTED]

Re: Our Client: Student Loan Solutions, LLC
CAROL M OWENS ,
Our File No.: 23000508

DEAR MRS. OWENS:

Plaintiff has referred to us your account that is now past due and unpaid in the amount of \$9,637.52 for collection.

NOTICE OF LEGAL ACTION:

Notice Pursuant to Sec 1033, et seq. of the Code of Civil Procedure

You are hereby advised that we intend to commence legal action against you. This action may result in a judgment against you which may include the actual cost of the filing fee and the actual cost of service of process.

This letter is required by Section 1033 of the Code of Civil Procedure prior to filing of suit.

Very truly yours,
GOLDSMITH & HULL, A.P.C.



By: Stephen Goldsmith, Esq.

DFPI License Number 11011-99

This communication is an attempt to collect a debt by a debt collector and any information obtained will be used for that purpose.